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tex-115364438
SUPREME COURT OF TEXAS
BLAKE A. HAWTHORNE, CLERK

No. 26-0511

In re Reinaldo J. Aguiar Marcano, Relator	**§**	**IN THE SUPREME COURT OF TEXAS**

RELATOR'S RESPONSE TO MOTION FOR RULE 52.11 SANCTIONS, EMERGENCY MOTION FOR IMMEDIATE TEMPORARY STAY UNDER TRAP 52.10, AND CONCURRENT CROSS-PETITION FOR WRIT OF MANDAMUS AND EX PARTE HABEAS CORPUS

Reinaldo J. Aguiar Marcano

26714 Valleyside Drive, Katy, Texas 77494

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INDEX OF AUTHORITIES

Cases:

- *Albright v. Oliver*, 510 U.S. 266 (1994)
- *Attorney General of Texas v. Orr*, 989 S.W.2d 464 (Tex. App.—Austin 1999, no pet.)
- *Ex parte Shaffer*, 649 S.W.2d 300 (Tex. 1983)
- *Ex parte Snodgrass*, 43 Tex. Crim. 359, 65 S.W. 1061 (1901)
- *In re Marshall*, 515 S.W.3d 420 (Tex. App.—Houston [14th Dist.] 2017, orig. proceeding)
- *In re Strickland*, No. 05-23-01004-CV, 2024 WL 115289 (Tex. App.—Dallas Jan. 10, 2024, orig. proceeding)
- *In re Timothy Chad Gold*, No. 01-24-00123-CV (Tex. App.—Houston [1st Dist.] May 7, 2025, orig. proceeding)
- *Walker v. Packer*, 827 S.W.2d 833 (Tex. 1992)

Statutes and Rules:

- 18 U.S.C. § 1951 (The Hobbs Act)
- 18 U.S.C. § 1832 (Defend Trade Secrets Act)
- 28 U.S.C. § 2201 (Declaratory Judgment Act)
- 48 C.F.R. § 227.7004 (DFARS Administrative Claims)
- Tex. Civil Prac. & Rem. Code § 11.051
- Tex. Civil Prac. & Rem. Code § 30.016
- Tex. Civil Prac. & Rem. Code § 132.001

- Tex. Fam. Code § 201.015
- Tex. R. App. P. 9.4, 52.2, 52.3, 52.10, 52.11
- Tex. R. Civ. P. 7, 18a, 21

STATEMENT OF THE CASE

The underlying proceeding is a domestic relations suit captioned *In the Matter of the Marriage of Gloria Espina and Reinaldo J. Aguiar Marcano*, Cause No. 25-DCV-328122, pending in the 387th District Court of Fort Bend County, Texas, the Honorable Oscar M. Telfair III presiding. On January 14, 2026, Relator filed his Third Verified Motion to Recuse Judge Telfair (Index #149) , which was formally referred to the Chief Justice of this Court on January 27, 2026 (Index #170).

Despite the mandatory operation of the statutory stay, the Trial Court conducted an extrajudicial enforcement hearing on May 14, 2026 , leading to a void "Order for Capias and Setting of Bond" signed by Judge Telfair (Index #222). Relator sought emergency relief in the First Court of Appeals, which summarily denied his petitions for mandamus and habeas corpus on May 26, 2026. Concurrently, the Trial Court clerk altered docket entries to backdate records , and Real Party's counsel issued an extrajudicial ultimatum threat on May 26, 2026, demanding the withdrawal of these high-court proceedings.

STATEMENT OF JURISDICTION

This Court maintains absolute concurrent original jurisdiction to issue writs of mandamus, prohibition, and habeas corpus pursuant to **Texas Government Code § 22.002** and **Texas Rule of Appellate Procedure 52**. Jurisdiction is further compelled because the intermediate court of appeals has failed to safeguard constitutional limits, leaving Relator with no alternative remedy to cure an ongoing, state-sanctioned property and liberty deprivation.

ISSUES PRESENTED

1. Whether a trial court's execution of an arrest warrant and scheduling of ex parte property discovery during a pending recusal referral is void *ab initio* under **TRCP 18a**.

2. Whether a trial court abdicates its ministerial duty by refusing to hold a mandatory de novo review under **Texas Family Code § 201.015**.

3. Whether an attorney's out-of-court text and email commands ordering a pro se litigant to drop an appeal or hire an attorney under threat of professional and personal ruin violates **TRCP 7** and **Ex parte Shaffer**.

4. Whether a state civil court lacks subject-matter jurisdiction to compel the production of computing hardware encumbered by active federal defense claims and pre-procurement grants under **DFARS 227.7004**.

5. Whether a live, unserved Capias warrant creates a state of "constructive restraint" sufficient to support high-court habeas jurisdiction under **Article 11.21**.

STATEMENT OF FACTS

The objective record tracking this procedural breakdown demonstrates that this litigation has been transformed into a commercial property extraction mechanism. On January 14, 2026, Relator filed his Third Verified Motion to Recuse Judge Telfair (Index #149) based on documented evidence of administrative partiality. This motion was referred by Regional Presiding Judge Susan Brown to the Chief Justice of the Supreme Court of Texas on January 27, 2026 (Index #170), triggering a mandatory stay of all lower court mechanisms.

On April 17, 2026, Relator formally executed an irrevocable, perpetual, no-fee technology license to the United States Department of Defense, administered by the Under Secretary of Defense for Research and Engineering. This grant covered a portfolio of fifty-two (52) foundational hardware and software applications. Simultaneously, Relator filed an active administrative claim under **DFARS 227.7004** against major aerospace contractors to audit and halt procurement fraud.

Four days later, on April 21, 2026, Real Party's counsel abruptly accelerated discovery demands in the family court. This culminated in a "Motion to Compel Discovery" filed on April 28, 2026 , targeting corporate computing hardware used for Human Resources operations , supported by a standard corporate fee ledger of $17,500. On

May 14, 2026, during the stay, the trial court held an ex parte contempt hearing and signed a void "Order for Capias and Setting of Bond" (Index #222). This instrument was withheld from the public view until May 22, 2026, to prevent a timely response.

Concurrently, a text message from Petitioner asserted a personal "gift" ownership interest over the corporate hardware node. The clerk then modified the docket sheet to hide the original proposed Capias records (Index #213) , and added an ambiguous ex parte entry for May 27, 2026, labeled **"M-Compel"**. On Friday, May 22, and Monday, May 25, 2026, Relator electronically submitted his written statutory objections and his Fifth Motion for De Novo Hearing. The district clerk processed these documents to apply a standardized, altered file stamp of **"5/26/2026 12:00 AM"** across all separate envelopes to obscure the real ingestion dates.

On May 26, 2026, at 4:42 P.M., G. Troy Pickett sent an explicit ultimatum email to Relator. Counsel threatened to file for immediate sanctions at 10:00 P.M. tonight and a vexatious litigant motion on Monday, June 1, 2026, unless Relator voluntarily withdrew his Supreme Court records and surrendered his pro se status by hiring an appearance attorney.

The administrative record presents a severe chronological contradiction exposing active manipulation of the enforcement timeline. While the lower court register of actions

notes a text entry on May 15, 2026, stating "Court signs Capias," the actual physical Writ of Capias attached hereto tells a completely different story. The writ was not executed, sealed, or validated by the clerk until May 26, 2026—the exact day this Court issued its "Forward Matters" directive and the Real Party launched his extrajudicial sanctions ultimatum. The clerk's office held an unissued pocket warrant for eleven (11) days, intentionally keeping the Relator under an unserved cloud of imminent confinement to paralyze his ability to access alternative court divisions.

The fraudulent nature of this specific docket insertion is exposed by a glaring, literal typographic error within the entry text itself, which reads: "Capias Issued/**Faliure** to Appear (Inactive Status)." Far from a routine or system-generated logging event, the clerk's literal misspelling of the word "Failure" as "Faliure" provides irrefutable proof of an ad hoc, manual intervention into the electronic register. An automated case-management system or standardized software template does not make typographical spelling errors; such an anomaly can only occur when a human actor manually inputs custom text directly into the portal field. This specific typo reveals that the record-tampering maneuver was executed in a state of absolute administrative haste, as personnel scrambled to manually inject a colorable basis for the Relator's arrest before this Court could lock down and freeze the electronic record transmission under

the May 26, 2026 "Forward Matters" directive.

ARGUMENT AND AUTHORITIES

Argument I: The Automatic Operation of the Rule 18a Stay and the Absolute Voidness of the Under-Color Enforcement Actions

The Real Party's primary defense against a finding of absolute voidness relies upon **Texas Civil Practice & Remedies Code § 30.016**, asserting that a tertiary motion to recuse permits a presiding judge to ignore the traditional, non-discretionary stay requirements of the rules of procedure. This position represents a profound misapplication of the statutory framework. Section 30.016(b) states that a judge shall continue to preside *except* as otherwise provided by the rules of procedure. It does not grant a trial clerk or coordinator license to engage in extrajudicial docket manipulation or secret enforcement operations while a formal referral remains pending before the Chief Justice of this Court.

The automatic operation of **Texas Rule of Civil Procedure 18a(g)(1)** is explicit: the judge who is the subject of the recusal motion "must take no further action in the case" until the motion is formally decided by a competent authority. The issuance of a Capias

warrant on May 15, 2026, is a severe exercise of judicial power that goes straight to physical containment. Under established Texas jurisprudence, including *In re Marshall*, 515 S.W.3d 420, 422 (Tex. App.—Houston [14th Dist.] 2017, orig. proceeding), any orders signed, hearings held, or warrants processed during the pendency of a mandatory recusal stay are absolute nullities, void *ab initio*, and completely incapable of supporting any subsequent civil enforcement or discovery sanctions.

The Real Party's contention that the Relator faces no imminent threat to liberty relies entirely on a deceptive administrative entry on the trial docket dated May 26, 2026, which reads: "Capias Issued/Faliure to Appear (Inactive Status)." In standard court administration matrices, changing a case profile metric to "inactive" is a routine reporting mechanism utilized while an individual is sought. However, by conflating case disposition metrics within the literal description of the arrest warrant, the clerk has constructed a fraudulent record designed to mislead this Court into believing the Capias itself is defunct. A Writ of Capias commanding peace officers to take the body of the Relator instanter is never "inactive." It remains a live, dangerous instrument of state duress until quashed, and labeling it "inactive" on a public screen while leaving it operational in law enforcement databases constitutes a deliberate due process

distortion.

Argument II: Structural Due Process Deprivation and the Systematic Abdication of Mandatory Section 201.015 De Novo Reviews

The Real Party's motion for sanctions argues that **Texas Family Code § 201.015** is restricted entirely to associate judges and carries zero weight when a presiding judge conducts an enforcement hearing. This argument deliberately ignores the underlying record of this case. Relator has filed **five distinct, timely motions for de novo review**. Each motion challenges specific extrajudicial orders that are directly predicated on unserved, secret recommendations and baseline "Proposed Orders" drafted by predecessor and associate judicial mechanisms dating back to April 2025.

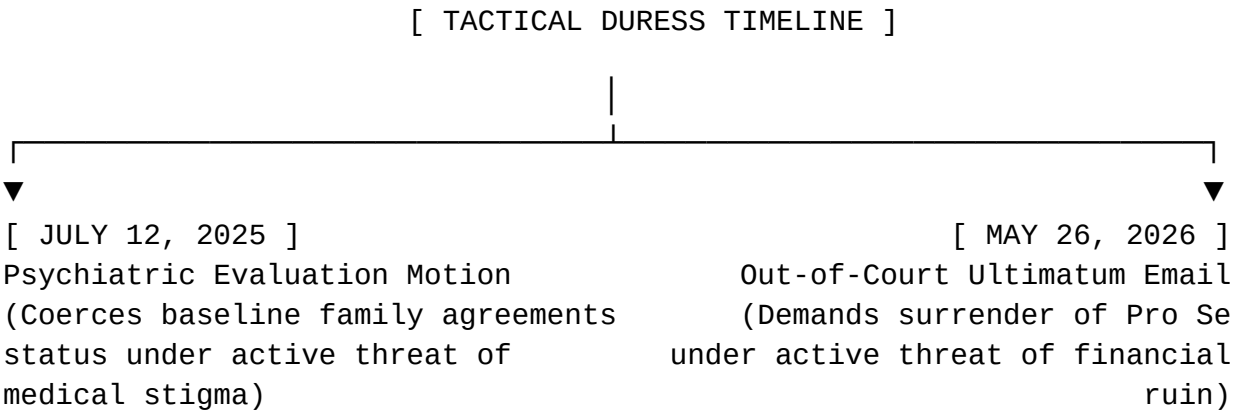
A party's right to a de novo hearing under **Family Code § 201.015(a)** is an absolute statutory mandate. It is not a discretionary privilege that a trial judge can sit on or ignore. As held in *Attorney General of Texas v. Orr*, 989 S.W.2d 464, 469 (Tex. App.—Austin 1999, no pet.), the trial court maintains zero jurisdiction to execute enforcement actions or sign a Capias warrant to backstop a prior ruling while a timely request for a complete de novo review remains unaddressed on the active docket. Deferring or ignoring five successive de novo filings while using an active arrest warrant to confine an unrepresented whistleblower represents a complete breakdown of

structural due process.

Argument III: Real Party's Unclean Hands, Litigation Duress, and the Coercive Infringement of the Absolute Right to Self-Representation

The Real Party comes before this Court with heavily unclean hands. The electronic transmission delivered by G. Troy Pickett on May 26, 2026, at 4:42 P.M. represents a severe, documented infraction of **Texas Rule of Civil Procedure 7** and the basic principles of professional conduct. Counsel's explicit command ordering Relator to dismantle his high-court appellate filings by a 10:00 P.M. midnight deadline under threat of immediate financial penalties and a localized vexatious litigant blockade constitutes a direct form of litigation duress.

Furthermore, counsel's written statement that he would withhold his punitive filings *only* if Relator surrendered his pro se status and hired an appearance attorney represents an unconstitutional attack on the right to self-representation.



In *Ex parte Shaffer*, 649 S.W.2d 300, 301 (Tex. 1983), this Court held that any judicial or administrative mechanism that conditions a citizen's right to access the courts or protect their liberty on the forced retention of an attorney is structurally void. This threat is part of a multi-year pattern of coercion:

- **July 12, 2025:** Counsel deployed a tactical psychiatric evaluation motion to force baseline family agreements under the active threat of medical stigma.
- **September 8 & 11, 2025:** Counsel utilized compressed scheduling blocks to systematically strip Relator of his statutory response windows.
- **May 2026:** Counsel combined a hidden Capias with an un-notified property discovery hearing to secure an asset conversion while keeping Relator locked in his residence.

This systemic behavior directly violates **Texas Disciplinary Rule of Professional Conduct 3.04**, which explicitly prohibits the fraudulent concealment, alteration, or spoliation of evidentiary records and public docket tracking nodes.

This metadata shift provides irrefutable evidence of unclean hands and tactical spoliation under Texas Disciplinary Rule 3.04. The physical Capias document bears the official seal and explicit text: "Witness my hand and seal of Office at Richmond, Texas,

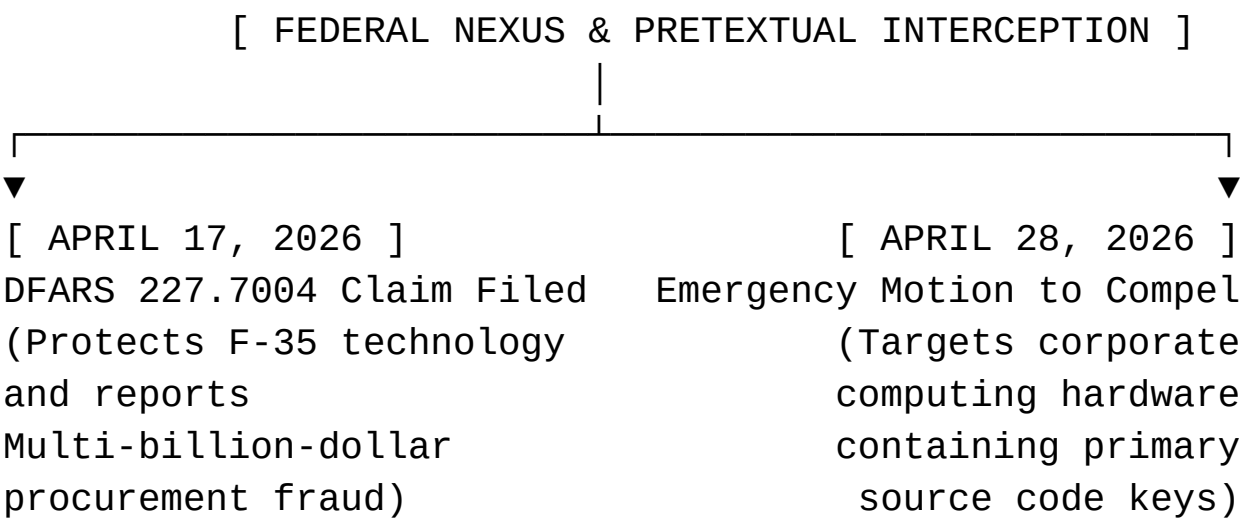
on this the 26th day of May, 2026," signed by Deputy Clerk Jiajing Lin. Yet, the clerk backdated the administrative track to hide an eleven-day gap where an unissued warrant was held as a tool of duress. This timeline matches the exact hour G. Troy Pickett issued his email ultimatum demanding the withdrawal of these appellate proceedings. The lower court network is actively altering docket entry descriptions and issue dates to match the Real Party's shifting litigation narrative, executing a coordinated strategy to reshape public records to escape high-court review.

The fraudulent nature of this specific docket insertion is additionally exposed by a glaring, literal typographic error within the entry text itself, which reads: "Capias Issued/**Faliure** to Appear (Inactive Status)." Far from a routine, system-generated tracking metric, the clerk's literal misspelling of the word "Failure" as "*Faliure*" provides irrefutable proof of a manual, ad hoc intervention into the electronic register of actions. Automated court-management templates do not make spelling typos; such an anomaly can only occur when a human actor manually types custom text directly into a portal field. This specific typo establishes that the record-tampering maneuver was executed in a state of absolute administrative haste, as clerical personnel bypassed system automation to manually invent an on-screen "Inactive" status to hide the active arrest warrant before this Court could capture and freeze the transmission under its May 26,

2026 "Forward Matters" directive.

Argument IV: Interlocking Federal Public Procurement and Sovereign Military Trade Secret Protection Matrix

The accelerated discovery demands and the scheduling of tomorrow's ex parte **"M-Compel"** hearing are explicitly tied to Relator's commercial technology assets. The timeline shows a direct link between Relator's federal disclosures and the private actors' enforcement moves:



- **April 17, 2026:** Relator files his formal **DFARS 227.7004 Administrative Claim** with the Department of Defense, protecting his F-35 quantum computing architectures and reporting procurement fraud.

- **April 21, 2026:** Four days later, Pickett files his discovery dispute letter.
- **April 28, 2026:** Counsel secures an emergency setting for a Motion to Compel , targeting corporate computing hardware containing the primary source code keys to Relator's patent applications.

The physical hardware targeted by the trial court's order is not community or marital property; it is an independent corporate asset owned by Plaintiff Haretz Hamuvlakhat Corp.. Fifty (50) of the underlying inventions in this portfolio are encumbered by an active, irrevocable, worldwide, no-fee license of use granted directly to the United States Federal Government for national defense purposes.

Because the United States Government holds a direct property interest in these technologies, any attempt by a local state court to execute a forced physical conversion and public disclosure of these systems directly compromises federal sovereign procurement and national security interests. Consequently, the United States Government qualifies as a necessary Real Party in Interest under **TRAP 52.2**, and the state court is completely divested of subject-matter jurisdiction to compel the production of federally encumbered computing infrastructure under the color of a domestic relations dispute.

Argument V: Erroneous Denial Below and the Immediate Operational Bounds of Constructive Restraint Habeas Jurisdiction

The Real Party asserts that because Relator is not currently sitting inside a physical jail cell, he cannot seek habeas corpus protection from this Court, and his petition remains entirely groundless under appellate guidelines. This position directly misstates the clear boundaries of Texas law. **Texas Code of Criminal Procedure Article 11.21** defines restraint as any "direction, influence, or confinement" exercised over a person to prevent them from moving freely within their chosen environment.

In the landmark decision *Ex parte Snodgrass*, 43 Tex. Crim. 359, 65 S.W. 1061 (1901), Texas courts established that a person is under sufficient restraint to unlock habeas corpus review if an active, live warrant for their arrest exists, forcing them to alter their daily movements, limit their travel, or remain in hiding to avoid a raw deprivation of liberty. Relator has been subjected to a continuous condition of *de facto* house arrest for eleven (11) days because leaving his home exposes him to immediate arrest under a void Capias, vehicle impoundment, and the physical loss of corporate proprietary technology.

The existence of an unquashed Capias—regardless of the clerk's arbitrary parenthetical addition of the words "(Inactive Status)" on a docket sheet—constitutes an ongoing

constructive restraint under Article 11.21. The Relator remains physically confined to his home because stepping into public view triggers immediate execution of the warrant, vehicle impoundment, and the physical loss of corporate data keys material to an active federal defense procurement audit. A citizen is not required to walk into a trap and be locked behind bars to establish habeas jurisdiction when the state instrument ordering his immediate arrest is live, signed, and actively circulating in law enforcement systems.

Because the First Court of Appeals erroneously denied relief on May 26, 2026, by ignoring these operational realities, Relator has completely exhausted his lower appellate tracks. This Court must exercise its original jurisdiction to resolve this record conflict and dissolve the unconstitutional enforcement actions paralyzing the Relator.

PRAYER AND RELIEF SOUGHT

PREMISES CONSIDERED, Relator Reinaldo J. Aguiar Marcano respectfully prays that this Honorable Supreme Court of Texas enters an immediate order:

1. **DENYING** G. Troy Pickett's Motion for Rule 52.11 Sanctions in its entirety, finding that Relator's filings represent a legitimate constitutional record dispute;
2. **GRANTING** an immediate, emergency temporary stay under **TRAP 52.10**,

canceling tomorrow's ex parte "M-Compel" event and halting all local enforcement of the void Capias warrant signed on May 15, 2026;

3. **CONDITIONALLY GRANTING** a Writ of Mandamus and Habeas Corpus declaring the Capias and all trial court orders signed after January 14, 2026, absolute nullities under TRCP 18a; and

4. **ORDERING** the Fort Bend County District Clerk to restore the unalterable electronic submission timestamps across Envelopes **115287913, 115289907, 115289920, and 115302179** to correct the appellate record prior to transmittal.

Respectfully submitted,



Reinaldo J. Aguiar Marcano

Reinaldo J. Aguiar Marcano,

Pro Se Relator / Respondent

26714 Valleyside Drive, Katy, Texas 77494

Phone: (646) 229-5724 | Email: rj.aguiar.m@gmail.com

CERTIFICATE OF SERVICE

Pursuant to **Texas Rule of Appellate Procedure 9.5**, I certify that a true and correct copy of the foregoing consolidated Response, Emergency Stay Motion, and Cross-Petition was served on May 27, 2026, upon all parties and counsel of record via the integrated electronic eFiling manager or direct electronic mail transmission as specified below:

- G. Troy Pickett, OWLawyers (troy@owlawyers.com; houservice@owlawyers.com)
- **William Kyle Adams**, Adams Law Firm, P.C. (wka@adamslawfirm.com)
- **Morgan T. Rivera-Hybner**, Adams Law Firm, P.C. (mhybner@adamslawfirm.com)
- **The Honorable Oscar Telfair III**, Presiding Judge (387th@fortbendcountytx.gov)
- Lt. Gen. Mike Schmidt, F-35 Joint Program Office (michael.schmidt@us.af.mil)
- **The Honorable Emil Michael**, Under Secretary of Defense (emil.michael@mail.mil)

By:



Reinaldo J. Aguiar Marcano

Pro Se ---

No. 26-0511

In re Reinaldo J. Aguiar Marcano, Relator	**§**	**IN THE SUPREME COURT OF TEXAS**

RELATOR'S MASTER APPENDIX AND COMPREHENSIVE INDEX OF REQUISITE EXHIBITS PURSUANT TO TEX. R. APP. P. 52.3(k)

Relator Reinaldo J. Aguiar Marcano, Pro Se, certifies that the following items are true, correct, exact, and literal electronic copies of official documents, electronic recordings, or cryptographically verified filings material to the determination of this cause, and are organized and indexed in support of his unified response, stay request, and cross-petition:

CATEGORY I: CHALLENGED STATE COURT ORDERS & APPELLATE RULINGS

- **EXHIBIT A:** Complete copy of the Memorandum Opinion issued by the First Court of Appeals on May 26, 2026, in Cause No. **01-26-00516-CV** (*Ex parte Reinaldo J. Aguiar Marcano*), summarily denying the Petition for Writ of Habeas Corpus.

- **EXHIBIT B:** Complete copy of the Memorandum Opinion issued by the First Court of Appeals on May 26, 2026, in Cause No. **01-26-00544-CV** (*In re Reinaldo J. Aguiar Marcano*), summarily denying the Petition for Writ of Mandamus and Injunction.

- **EXHIBIT C:** True and correct copy of the physical Writ of Capias issued in Cause No. 25-DCV-328122, bearing the official stamp and validation text: "Witness my hand and seal of Office at Richmond, Texas, on this the 26th day of May, 2026," signed by Deputy District Clerk Jiajing Lin, demonstrating an 11-day issue gap from the historic May 15 docket entries.

- **EXHIBIT D:** True and correct copy of the notice setting a physical evidentiary hearing issued by Real Party's counsel on April 28, 2026, titled **"Notice of Hearing,"** which scheduled the ex parte **"M-Compel"** property extraction event for Wednesday, May 27, 2026, at 9:00 AM.

CATEGORY II: DIGITAL METADATA LOGS & EVIDENCE OF CLERICAL SPOLIATION

- **EXHIBIT E:** True and correct typographic copy of the official Fort Bend County Register of Actions for underlying Cause No. **25-DCV-328122** captured on May 27, 2026, at 1:00 AM, documenting the retroactive application of a standardized **"5/26/2026 12:00 AM"** file stamp across multiple independent statutory filings.

- **EXHIBIT F-1:** Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115287913**, establishing a permanent digital audit trail of Relator's *Second Emergency and Mandatory Motion for De Novo Hearing* submitted on Saturday, May 23, 2026.

- **EXHIBIT F-2:** Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115289907**, establishing a permanent digital audit trail of Relator's *Third Emergency and Mandatory Motion for De Novo*

Hearing submitted on Saturday, May 23, 2026.

- **EXHIBIT F-3:** Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115289920**, establishing a permanent digital audit trail of Relator's *Fourth Emergency and Mandatory Motion for De Novo Hearing* submitted on Saturday, May 23, 2026.

- **EXHIBIT F-4:** Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115302179**, establishing a permanent digital audit trail of Relator's *Fifth Emergency and Mandatory Motion for De Novo Hearing* submitted on Monday, May 25, 2026.

CATEGORY III: SOVEREIGN DEFENSE ENCUMBRANCES & MILITARY PROCUREMENT FRAUD AUDITS

- **EXHIBIT G:** Formal Notice of Perpetual, No-Fee Technology License Grant delivered by Relator to the Honorable Heidi Shyu, Under Secretary of Defense for Research and Engineering, dated March 12, 2026, covering a portfolio of 33 core computing and secure data transfer architectures.

- **EXHIBIT H:** Formal Administrative Claim for Patent Infringement under **DFARS 227.7004** served by Relator upon Lieutenant General Mike Schmidt (F-35 Joint Program Office PEO) and Lockheed Martin Corporation corporate counsel Kevin J. O'Connor on April 17, 2026.

- **EXHIBIT I:** Cryptographically verified **RPost Registered Receipt™** (Tracking ID: **77D821347FDBA15F9F2D60EB2BB3F7803F631719**), providing permanent proof of delivery and the official time of opening of the DFARS administrative claim files by defense procurement leadership on April 17, 2026.

CATEGORY IV: INTELLECTUAL PROPERTY REPOSITORIES &

ADVERSARIAL COERCION ADMISSIONS

- **EXHIBIT J:** Primary cover configuration, official Library of Congress control metadata, and printed Table of Contents of Relator's published compendium: ***Be Water, Be Light: Portfolio of Patent Applications Submitted to the US Patent and Trademark Office During Year 2026*** **(ISBN 9781971481296)**.

- **EXHIBIT K:** Respondent's Unsworn Emergency Declaration of Translation and Transcription Certification pursuant to Tex. Civ. Prac. & Rem. Code § 132.001, embedding the text message exchange with Petitioner Gloria Espina wherein she asserts a personal "gift" ownership interest over a corporate-funded computer tool.

- **EXHIBIT L:** Printout of the official Fort Bend County Register of Actions captured on May 27, 2026, at 1:00 AM, explicitly documenting the deceptive conflated entry at Index #229 titled "**Capias Issued/Failure to Appear (Inactive Status)**" utilized to distort the active nature of the arrest warrant before this Court.

MANDATORY SIGNATURE BLOCK

Respectfully submitted,
By:



Reinaldo J. Aguiar Marcano

Pro Se Relator / Respondent
26714 Valleyside Drive, Katy, Texas 77494
Phone: (646) 229-5724
Email: rj.aguiar.m@gmail.com

Inventor, Corporate Representative of Haaretz Hamuvlakhat Corp., and Federal

EXHIBIT A: Complete copy of the Memorandum Opinion issued by the First Court of Appeals on May 26, 2026, in Cause No. **01-26-00516-CV** (*Ex parte Reinaldo J. Aguiar Marcano*), summarily denying the Petition for Writ of Habeas Corpus.

Filed
05/26/2026 15:31:09
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
Tran, Tracy

Opinion issued May 26, 2026

In The

Court of Appeals

For The

First District of Texas

NO. 01-26-00516-CV

EX PARTE REINALDO J. AGUIAR MARCANO, Relator

Original Proceeding on Petition for Writ of Habeas Corpus

MEMORANDUM OPINION

On May 14, 2026, Relator Reinaldo J. Aguiar Marcano filed a petition for writ of habeas corpus claiming that the trial court conducted a contempt hearing earlier that morning and "is now poised to sign" proposed orders for his commitment and arrest.[1] Relator requests that our Court "issue an order staying the signing and

[1] The underlying case is *In the Matter of the Marriage of Gloria Espina and Reinaldo J. Aguiar and In the Interest of M.A.A., a child,* cause number 25-DCV-328122, pending in the 387th District Court of Fort Bend County, Texas, the Honorable Oscar M. Telfair III presiding.

ROUTED TO COURT 5/26/26 trn
RT'D TO D. CLERK

execution of the Proposed Order for Commitment and Capias, and grant its writ of habeas corpus declaring the contempt proceeding and any resulting orders void, and discharging Relator from any threat of custody or restraint." On May 15, 2026, Relator filed an "Emergency Motion to Correct Prejudicial Docketing Error, Supplement to Petition for Writ of Habeas Corpus, and Renewed Plea for Immediate Consideration." Among other things, the new filing asserts that "the docket in the underlying Cause No. 25-DCV-328122 reflects that the presiding judge, the Honorable Oscar Telfair, III, has signed the 'Order for Capias and Setting Bond.'"

We deny the petition for writ of habeas corpus and all related motions and requests for relief.

PER CURIAM

Panel consists of Justices Rivas-Molloy, Gunn, and Caughey.

EXHIBIT B: Complete copy of the Memorandum Opinion issued by the First Court of Appeals on May 26, 2026, in Cause No. **01-26-00544-CV** (*In re Reinaldo J. Aguiar Marcano*), summarily denying the Petition for Writ of Mandamus and Injunction.

Filed
05/26/2026 15:18:02
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
Tran, Tracy

Opinion issued May 26, 2026

In The

Court of Appeals

For The

First District of Texas

NO. 01-26-00544-CV

IN RE REINALDO J. AGUIAR MARCANO, Relator

Original Proceeding on Petition for Writ of Mandamus and Injunction

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MEMORANDUM OPINION

On May 21, 2026, Relator Reinaldo J. Aguiar Marcano filed an "Emergency Petition for Writs of Mandamus and Injunction, and Request for Immediate Interim Relief" requesting that we compel the Clerk of this Court to take various actions regarding Relator's filings.[1] We deny the petition and all related requests for relief. All pending motions are denied.

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[1] The underlying case is *In the Matter of the Marriage of Gloria Espina and Reinaldo J. Aguiar and In the Interest of M.A.A., a child,* cause number 25-DCV-328122, pending in the 387th District Court of Fort Bend County, Texas, the Honorable Oscar M. Telfair III presiding.

ROUTED TO COURT 5/26/26 trn
RT'D TO D. CLERK

PER CURIAM

Panel consists of Justices Gunn, Caughey, and Morgan.

EXHIBIT C: True and correct typographic copy of the physical Writ of Capias issued in Cause No. 25-DCV-328122, bearing the official stamp and validation text: "Witness my hand and seal of Office at Richmond, Texas, on this the 26th day of May, 2026," signed by Deputy District Clerk Jiajing Lin, demonstrating an 11-day issue gap from the historic May 15 docket entries.

SERVICE FEE COLLECTED
BY DISTRICT CLERK

Capias

Date of Birth: [redacted] **Gender: MALE**
Driver License No: 539 **Social Security No:** 000002502
Other: 26714 VALLEYSIDE DR
KATY TX 77494
OR 2302 BRITTON RIDGE DRIVE

Bond Type: CASH BOND
Bond Amount: $2,500.00

Cause No. **25-DCV-328122**

THE STATE OF TEXAS,

TO ANY PEACE OFFICER OF THE STATE OF TEXAS---GREETING:

YOU ARE HEREBY COMMANDED TO ARREST: **REINALDO J. AGUIAR MARCANO**, to be found in your county, and **REINALDO J. AGUIAR MARCANO** safely keep, so that you have **REINALDO J. AGUIAR MARCANO** before the 387th Judicial District Court of Fort Bend County, Texas, at the Court House of said County, located at **1422 Eugene Heimann Circle, Richmond, TX 77469**, and there to answer for their failure to appear for **CIVIL NON-SUPPORT** on **May 14, 2026** before the **387TH JUDICIAL DISTRICT COURT**, as ordered.

HEREIN FAIL NOT, but make due return hereof to this Court on **INSTANTER**.

Witness my hand and seal of Office at Richmond, Texas, **on this the 26th day of May, 2026**.

BEVERLEY MCGREW WALKER, DISTRICT CLERK
FORT BEND COUNTY, TEXAS
Physical Address:
1422 Eugene Heimann Circle, Room 31004
Richmond, Texas 77469
Mailing Address:
301 Jackson Street, Room 101
Richmond, Texas 77469

By: _____
Deputy District Clerk Jiajing Lin
Telephone: (281) 341-4515

DISTRICT COURT OF FORT BEND COUNTY, TEXAS

SERVICE RETURN

This capias was received on_____ 20_____ at _____ o'clock _.m., and it was

☐ Executed on the __day of _____20____, at _____ o'clock _.m. by arresting Reinaldo J. Aguiar Marcano and confining Reinaldo J. Aguiar Marcano in the county jail of _____County to await the further order of the Court.

☐ Not executed because: _____
_____

☐ Efforts to find Reinaldo J. Aguiar Marcano and information as to Reinaldo J. Aguiar Marcano whereabouts:
_____

I actually and necessarily traveled _____ miles in the service of this Capias, in addition to any other mileage I may have traveled in the service of other process in this cause during the same trip.

Fees: Serving Capias $ _____ _____ Sheriff or Constable
Mileage $ _____ _____ County, Texas
Totals $ _____ By: _____ Deputy

*State day and hour and place of serving each person.

SERVICE

EXHIBIT D: Certified copy of the notice setting a physical evidentiary hearing issued by Real Party's counsel on April 28, 2026, titled **"Notice of Hearing,"** which scheduled the ex parte **"M-Compel"** property extraction event for Wednesday, May 27, 2026, at 9:00 AM.

Filed
4/28/2026 2:28 PM
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
Denisse Kaleh

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA

NO. 25-DCV-328122

IN THE MATTER OF THE MARRIAGE OF	§	**IN THE DISTRICT COURT**
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO	§	**387TH JUDICIAL DISTRICT**
AND IN THE INTEREST OF [redacted] A CHILD	§	**FORT BEND COUNTY, TEXAS**

NOTICE OF HEARING

Notice is given that the hearing on Motion to Compel Discovery and for Sanctions is set before the Court at 9:00 A.M. on May 27, 2026

All participants must appear on the date and at the time set for the hearing physically in the courtroom of this Court at 1422 Eugene Heimann Cir, Richmond, Texas. Participants may appear before the Court by other means only if permitted by court order. The Court's designated contact information is by telephone at 281-238-3290.

Failure of a participant to appear as directed may have prejudicial consequences, including the issuance of an order by default affecting a participant's rights; dismissal of a participant's existing claims, if any; monetary sanctions; or other consequences that detrimentally affect a participant's ongoing involvement in the litigation.

Instructions for submitting evidence: a. Exhibit List and Witness List SHALL

be exchanged and filed with the clerk by 12 noon on the business day before any hearing or trial; b. Exhibits shall be pre-marked, exchanged and copies provided to all counsel and self-represented litigants by 12 noon on the business day before any hearing or trial; c. Exhibits should be pre-marked identifying the offering party (Petitioner, Respondent, Intervenor, etc.) and using numbers only. For example, "Petitioner Ex. 1," but not "Petitioner Ex. A."

Additional instructions for participating in the hearing: None.

SIGNED on April 28, 2026 .

OWLawyers
O'Neil Wysocki, P.C.
19 Briar Hollow Lane, Ste. 200
Houston, Texas 77027
Tel: (713) 224-1800
Fax: (713) 224-1804

By: /s/ G. Troy Pickett
G. Troy Pickett
State Bar No. 24072757
troy@owlawyers.com
Attorney for Petitioner

CERTIFICATE OF SERVICE

I certify that a true copy of this document was served in accordance with rule 21a of the Texas Rules of Civil Procedure on the following on April 28, 2026:

Reinaldo J. Aguiar Marcano by electronic filing manager.

/s/ G. Troy Pickett
G. Troy Pickett
Attorney for Gloria Espina

Automated Certificate of eService

This automated certificate of service was created by the efiling system. The filer served this document via email generated by the efiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Troy Pickett on behalf of Troy Pickett
Bar No. 24072757
troy@owlawyers.com
Envelope ID: 114211498
Filing Code Description: Motion (No Fee)
Filing Description: Motion to Compel Discovery and for Sanctions
Status as of 4/29/2026 8:16 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
G. Troy Pickett	24072757	houservice@owlawyers.com	4/28/2026 2:28:13 PM	SENT
G. TroyPickett		troy@owlawyers.com	4/28/2026 2:28:13 PM	SENT
Reinaldo Aguiar Marcano		aguiar@reinaldo.ca	4/28/2026 2:28:13 PM	SENT

EXHIBIT F-1: Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115287913**, establishing a permanent digital audit trail of Relator's *Second Emergency and Mandatory Motion for De Novo Hearing* submitted on Saturday, May 23, 2026.

Filed
5/26/2026 12:00 AM
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
A'Leah Hudson

NO. 25-DCV-328122

IN THE MATTER OF THE MARRIAGE OF
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO

IN THE DISTRICT COURT OF FORT BEND COUNTY, TEXAS
387TH JUDICIAL DISTRICT

RELATOR'S SECOND EMERGENCY AND MANDATORY MOTION FOR DE NOVO HEARING (REGARDING VOID CAPIAS HEARING OF MAY 14, 2026)

TO THE HONORABLE OSCAR TELFAIR, III, PRESIDING JUDGE:

Relator, REINALDO J. AGUIAR MARCANO, files this Second Emergency and Mandatory Motion for De Novo Hearing, and shows the Court as follows:

I. SUMMARY

The Court held a hearing on May 14, 2026, in Relator's absence, which resulted in the issuance of a void "Order for Capias and Setting of Bond" (Index #222). The signed order was then withheld from the docket until May 22, 2026, depriving Relator of his statutory right to request a de novo hearing within the three-day limit prescribed by the Texas Family Code. This motion asserts that right. Further, this motion once again demands that this Court clarify its position on the mandatory, automatic stay that renders all such hearings and orders void. The Court's continued refusal to rule on this jurisdictional issue, while simultaneously threatening Relator's liberty, constitutes a deliberate and ongoing violation of due process.

II. ARGUMENT AND AUTHORITIES

A. The Right to a De Novo Hearing Was Obstructed by the Court's Delay

Texas Family Code §201.015 grants a party the right to request a de novo hearing within three working days of receiving notice of a judge's ruling. Here, the hearing occurred on May 14, 2026.

EXHIBIT F-2: Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115289907**, establishing a permanent digital audit trail of Relator's *Third Emergency and Mandatory Motion for De Novo Hearing* submitted on Saturday, May 23, 2026.

Filed
5/26/2026 12:00 AM
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
Denisse Kaleh

NO. 25-DCV-328122

IN THE MATTER OF THE MARRIAGE OF
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO

IN THE DISTRICT COURT OF FORT BEND COUNTY, TEXAS
387TH JUDICIAL DISTRICT

RELATOR'S THIRD EMERGENCY AND MANDATORY MOTION FOR DE NOVO HEARING (REGARDING HEARING OF SEPTEMBER 8, 2025)

TO THE HONORABLE OSCAR TELFAIR, III, PRESIDING JUDGE:

Relator, REINALDO J. AGUIAR MARCANO, files this Third Mandatory Motion for De Novo Hearing.

The Court held a hearing on September 8, 2025. At the conclusion of that hearing, the Court immediately scheduled a follow-up hearing for September 11, 2025, only two business days later. This scheduling order, by its very nature, deprived Relator of his statutory three-day window under Texas Family Code § 201.015 to request a de novo review of the September 8th proceedings.

This is a structural and repeatable denial of due process. Because Relator was procedurally prevented from exercising his mandatory right in a timely fashion, the right is preserved. Relator hereby invokes his right to a de novo hearing for all matters addressed in the September 8, 2025 hearing.

This Court's refusal to rule on this and other mandatory motions constitutes an abdication of judicial duty and is the subject of proceedings before the Supreme Court of Texas.

PRAYER

Relator prays that this Court GRANT an immediate de novo hearing on all matters related to the September 8, 2025, hearing.

Respectfully submitted,



Reinaldo J. Aguiar Marcano

Pro Se

Automated Certificate of eService

This automated certificate of service was created by the efiling system. The filer served this document via email generated by the efiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Envelope ID: 115289907
Filing Code Description: Motion (No Fee)
Filing Description: Relator's Third Emergency and Mandatory Motion for the Novo Hearing (Regarding Hearing of September 8, 2025)
Status as of 5/26/2026 10:36 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
G. Troy Pickett	24072757	houservice@owlawyers.com	5/23/2026 4:06:16 PM	SENT
Morgan Hybner		mhybner@adamslawfirm.com	5/23/2026 4:06:16 PM	SENT
Tina Simon		tsimon@adamslawfirm.com	5/23/2026 4:06:16 PM	SENT
G. TroyPickett		troy@owlawyers.com	5/23/2026 4:06:16 PM	SENT
Reinaldo Aguiar Marcano		aguiar@reinaldo.ca	5/23/2026 4:06:16 PM	SENT
William ADAMS		wka@adamslawfirm.com	5/23/2026 4:06:16 PM	SENT
Reinaldo Aguiar Marcano		aguiar@reinaldo.ca	5/23/2026 4:06:16 PM	SENT
Oscar Telfair		387th@fortbendcountytx.gov	5/23/2026 4:06:16 PM	SENT
Oscar Telfair		387th@fortbendcountytx.gov	5/23/2026 4:06:16 PM	SENT
G. Troy Pickett		troy@owlawyers.com	5/23/2026 4:06:16 PM	SENT
David Perwin		david@perwinaguirre.com	5/23/2026 4:06:16 PM	SENT
Beverley McGrew Walker		Distclerkcivil@fortbendcountytx.gov	5/23/2026 4:06:16 PM	SENT
Reinaldo Aguiar Marcano		rj.aguiar.m@gmail.com	5/23/2026 4:06:16 PM	SENT
387th Court Scheduler		387thhearings@fortbendcountytx.gov	5/23/2026 4:06:16 PM	SENT

EXHIBIT F-3: Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115289920**, establishing a permanent digital audit trail of Relator's *Fourth Emergency and Mandatory Motion for De Novo Hearing* submitted on Saturday, May 23, 2026.

Filed
5/26/2026 12:00 AM
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
Tracy Morales

NO. 25-DCV-328122

IN THE MATTER OF THE MARRIAGE OF
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO

IN THE DISTRICT COURT OF FORT BEND COUNTY, TEXAS
387TH JUDICIAL DISTRICT

RELATOR'S FOURTH EMERGENCY AND MANDATORY MOTION FOR DE NOVO HEARING (REGARDING HEARING OF SEPTEMBER 11, 2025)

TO THE HONORABLE OSCAR TELFAIR, III, PRESIDING JUDGE:

Relator, REINALDO J. AGUIAR MARCANO, files this Fourth Mandatory Motion for De Novo Hearing.

The Court held a hearing on September 11, 2025, which resulted in verbal orders that would eventually be distorted and memorialized in the void "Temporary Orders" (Index #89). However, the draft for that order was not filed until many days later, and the final order was not signed until October 15, 2025. This inordinate and unexplained delay between the hearing and the signing of the order deprived Relator of his statutory three-day window under Texas Family Code §201.015 to request a de novo review of the September 11th proceedings.

Because Relator was procedurally prevented from exercising his mandatory right in a timely fashion, the right is preserved. Relator hereby invokes his right to a de novo hearing for all matters addressed in the September 11, 2025 hearing.

This Court's refusal to rule on this and other mandatory motions constitutes an abdication of judicial duty and is the subject of proceedings before the Supreme Court of Texas.

EXHIBIT F-4: Automated E-Service Submission Confirmation generated by Tyler Technologies for **Envelope ID 115302179**, establishing a permanent digital audit trail of Relator's *Fifth Emergency and Mandatory Motion for De Novo Hearing* submitted on Monday, May 25, 2026.

Filed
5/26/2026 12:00 AM
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
Tracy Morales

NO. 25-DCV-328122

IN THE MATTER OF THE MARRIAGE OF
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO
IN THE DISTRICT COURT OF FORT BEND COUNTY, TEXAS
387TH JUDICIAL DISTRICT
AND IN THE INTEREST OF A CHILD

BY SUBMISSION ONLY

RESPONDENT'S EMERGENCY, MANDATORY, AND JURISDICTIONAL MOTION UNDER FAMILY CODE § 201.015 OBJECTING TO EX PARTE "M-COMPEL" HEARING; FIFTH EMERGENCY MOTION FOR DE NOVO HEARING; AND PLEA TO THE JURISDICTION REGARDING TARGETED EXTORTION OF INTELLECTUAL PROPERTY ASSETS

I. LIMITED APPEARANCE AND REQUEST FOR RESOLUTION BY SUBMISSION

COMES NOW, Reinaldo J. Aguiar Marcano ("Respondent"), an inventor with an extensive active commercial portfolio before the United States Patent and Trademark Office (USPTO), appearing strictly in a **limited capacity** to protect his fundamental constitutional rights, physical liberty, and corporate proprietary property from immediate and irreparable injury.

Respondent explicitly requests that this Court rule upon the instant motion **BY SUBMISSION ONLY**. Respondent is barred from physically appearing in a courtroom due to a condition of *de facto* house arrest deliberately engineered by this Court. On May 15, 2026, this Court signed a void Order for Capias and Setting Bond (Index #222) during a period in which this Court's jurisdiction was completely stripped and frozen by a mandatory, automatic stay under **Texas Rule of Civil Procedure 18a(g)(1)**. Because leaving his residence subjects Respondent to immediate arrest, vehicle impoundment, and the physical seizure of proprietary technology

CATEGORY III: SOVEREIGN DEFENSE ENCUMBRANCES & MILITARY PROCUREMENT FRAUD AUDITS

EXHIBIT G: Formal Notice of Perpetual, No-Fee Technology License Grant delivered by Relator to the Honorable Heidi Shyu, Under Secretary of Defense for Research and Engineering, dated March 12, 2026, covering a portfolio of 33 core computing and secure data transfer architectures.

Reinaldo J. Aguiar Marcano
2302 Britton Ridge Drive
Katy, TX 77494
646-299-5724

The Honorable Heidi Shyu
Under Secretary of Defense for Research and Engineering
Office of the Secretary of Defense
3030 Defense Pentagon
Washington, DC 20301

Re: Notification of Perpetual, No-Fee Technology License Grant to the U.S. Government for a Foundational Quantum Computing Architecture and Warning of Foreign Adversary Action

Dear Under Secretary Shyu,

I am writing to formally notify the Department of Defense of a critical technological development with profound implications for United States national security, and to inform you of a perpetual, no-fee license I have granted to the U.S. Federal Government for this technology. Furthermore, I must warn you of a persistent, multi-year campaign by the People's Republic of China to misappropriate this intellectual property.

I am a former Google engineer and the inventor of a portfolio of 33 patent-pending technologies that collectively define a new architecture for optical computing and massively parallel data transmission. This invention overcomes the fundamental bandwidth limitations of current electronic systems, providing a data transfer and processing capability that is orders of magnitude beyond existing state-of-the-art. This breakthrough is a critical enabler for the next generation of high-performance computing, and most importantly, it is a prerequisite for the development of scalable, networked quantum computing clusters.

The strategic implications are significant. The nation that first masters distributed quantum computing will hold a decisive strategic advantage, including the ability to compromise nearly all current forms of encryption. Recognizing the immense importance of this technology to national defense, I have taken a deliberate and irreversible step: **within the legal text of the most critical patent applications, I have embedded a formal, perpetual, worldwide, no-fee license for the use of these inventions by the United States Federal Government for all purposes, including national defense.**

This action was taken to ensure that the United States has an unencumbered right to this foundational technology, free from any future commercial or legal constraints from my person. It effectively makes this IP a strategic national asset.

Concurrently, I must report that the Chinese Communist Party (CCP) has been engaged in a relentless and sophisticated campaign to illegally acquire this technology. These efforts have included cyber-espionage, physical surveillance, and direct attempts at coercion against me on U.S. soil.

All technical specifications of the inventions have been published in a publicly available book to establish definitive prior art and to serve as a defensive publication. This ensures that no other entity, including the CCP, can patent this technology for their exclusive benefit. The details are as follows:

- **ISBN:** 978-1-97-148129-6 (hardcover)
- **Title:** The Architecture of Control
- **Downloadable PDF:** Digital Version of Record

I am bringing this directly to your attention because your office is uniquely positioned to assess the strategic value of this technology and the gravity of the threat posed by the CCP's acquisition efforts. My granting of the license is intended to arm the Department of Defense with the legal and technical basis to defend this critical future capability from foreign adversaries. I urge your office to review the

technical details provided in the referenced book and to take appropriate action to secure this vital national security asset.

Thank you for your service and your attention to this urgent matter.

Sincerely,

Reinaldo Aguiar

Reinaldo J. Aguiar Marcano

EXHIBIT H: Formal Administrative Claim for Patent Infringement under **DFARS 227.7004** served by Relator upon Lieutenant General Mike Schmidt (F-35 Joint Program Office PEO) and Lockheed Martin Corporation corporate counsel Kevin J. O'Connor on April 17, 2026.

Reinaldo Aguiar Marcano
2302 Britton Ridge Drive, Katy TX 77494
https://xislist.org/ (ISBN 9781971481296)

FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES CONCERNING PERPETUALLY LICENSED TECHNOLOGIES

This notice:
https://storage.googleapis.com/rj-aguiar/01_DFARS_227.7004_Lockheed-Martin.pdf

TO: PROCURING CONTRACTING OFFICERS (PCOs) AND DIRECTORS

michael.schmidt@us.af.mil (Lt. Gen. Mike Schmidt, Program Executive Officer, F-35 JPO)

F-35 Joint Program Office (JPO) – Contracting Directorate

CC: EXECUTIVE LEADERSHIP, CORPORATE COUNSEL, AND MILITARY IP COUNSEL

kevin.j.oconnor@lmco.com (Kevin J. O'Connor, Legal Counsel, Lockheed Martin)

craig.martell@lmco.com (Craig Martell, Vice President and Chief Technology Officer, Lockheed Martin)

valerie.browning@lmco.com (Valerie Browning, Vice President of Research and Technology, Lockheed Martin)

emil.michael@osd.mil (The Honorable Emil Michael, Under Secretary of Defense for Research and Engineering / Chief Technology Officer)

Chief of the Intellectual Property Law Division (JALS-IP), U.S. Army Legal Services Agency

RE: ACTUAL KNOWLEDGE OF PATENT INFRINGEMENT (35 U.S.C. § 154(d)), INITIATION OF DFARS 227.7004 ADMINISTRATIVE CLAIM, AND NOTIFICATION OF POTENTIAL PROCUREMENT FRAUD BY LOCKHEED MARTIN CORPORATION

DATE: April 17, 2026

DELIVERY METHOD: Cryptographically Verified via Registered Email (RPost)

DEAR:

Lt. Gen. Schmidt and the F-35 JPO Contracting Directorate,

ISBN 9781971481296

This comprehensive technical and legal brief is served upon you in your official capacities within the United States Department of Defense (DoD).

This document constitutes a formal Administrative Claim for Patent Infringement under the Defense Federal Acquisition Regulation Supplement (DFARS) 227.7004. The purpose of this claim is to notify the United States Government of a highly anomalous and legally precarious situation involving the unauthorized commercialization of a foundational patent portfolio by Lockheed Martin Corporation.

I. THE U.S. DEPARTMENT OF DEFENSE LICENSE GRANT AND STRATEGIC BLOCKADE

Under standard operating procedures defined by 28 U.S.C. § 1498, the United States Government exercises eminent domain over domestic patents, shielding its defense contractors from civil injunctions and assuming financial liability for infringement.

However, the inventor of the Aguiar Marcano Intellectual Property Portfolio—which comprises 52 foundational patent applications published defensively in *The Architecture of Control* (ISBN 978-1-97-148129-6)—has proactively granted an irrevocable, perpetual, no-fee license to the federal government for all national defense purposes. The United States Department of Defense, specifically through Under Secretary of Defense Emil Michael, has been placed on direct notice of this license grant and is the designated authority administering this license on behalf of the military.

Lockheed Martin is currently utilizing these specific patented architectures to overcome severe computational bottlenecks in their aerospace and quantum programs. By embedding the research, development, and licensing costs of these technologies into multi-billion-dollar government contracts, Lockheed Martin is effectively charging the American taxpayer for intellectual property that the government already possesses the legal right to utilize indefinitely and without cost. Failing to halt the disbursement of funds to this contractor for pre-licensed intellectual property constitutes a gross mismanagement of taxpayer dollars.

II. Satisfaction of DFARS 227.7004 Administrative Claim Requirements

To compel immediate administrative intervention, this communication strictly adheres to the requirements of DFARS 227.7004(a) and (b):

1. **Allegation of Infringement:** We formally allege that the systems provided and developed by Lockheed Martin directly infringe upon the patent applications detailed

ISBN 9781971481296

below.

2. **Request for Compensation:** Because the government holds a free license to this portfolio, our request for compensation is a formal legal demand that the DoD immediately cease compensating Lockheed Martin for the licensed intellectual property.
3. **Citation of Patents:** The infringed applications include USPTO 19/639,219; 19/560,038; 19/562,838; and 19/562,845.
4. **Identification of Procurements:** See Section III below for the specific systems and contracting activities.
5. **Element-by-Element Comparison:** The required claim maps demonstrating precisely how the representative claims map to the accused software and processes are attached to this verified transmission.

III. Technological Nexus and Targeted Procurements

Lockheed Martin's most critical modernization efforts intersect directly with our proprietary claims, making their government contracts highly susceptible to this administrative review.

A. F-35 Technology Refresh 3 (TR-3) and the Integrated Core Processor

Responsible Activity: F-35 Joint Program Office (JPO)

The TR-3 upgrade is designed to modernize the computational core of the F-35 via a new L3Harris integrated core processor and a new aircraft memory unit, promising a 25x computing increase. Attempting to achieve this massive increase in computational throughput within the strict thermal and weight constraints of an airborne fighter requires abandoning traditional electrical data buses.

- **USPTO 19/560,038 (Optical Computing Architecture) & USPTO 19/562,838 (Energy-Efficient Computing via Clock Speed Reduction):** These patents define a holistic data fabric that replaces electrical I/O bottlenecks with a massively parallel optical interconnect, enabling a reduction in clock speed while maintaining high throughput. Any TR-3 processor upgrades utilizing internal optical data buses to mitigate thermal output directly infringe upon these hardware claims.
- **USPTO 19/639,219 (Central Processing Unit Architecture for Native Parametric and Symbolic Computation):** Upgrading the F-35's core processing capabilities to handle

ISBN 9781971481296

advanced sensor fusion natively relies upon our parametric high-radix architecture.

B. Strategic Quantum Computing and QML Partnerships

Responsible Activity: Lockheed Martin Research and Technology / Defense Innovation Unit (DIU)

Target Leadership: Craig Martell (CTO) and Valerie Browning (VP, Research & Technology)

Lockheed Martin is aggressively pursuing quantum technologies for aerospace and defense, recently signing strategic collaborations with PsiQuantum (November 2025), Xanadu (February 2026), and Fujitsu (February 2026). These partnerships focus on deploying fault-tolerant quantum algorithms, Quantum Machine Learning (QML), and dual-use AI/ML edge computing.

- **USPTO 19/562,845 (Physically Disaggregated Computing Systems):** To achieve the hybrid quantum-classical workflows required by these new partnerships, Lockheed Martin must utilize a disaggregated architecture where classical GPUs and quantum processing units (QPUs) are segregated yet interconnected via an ultra-high-bandwidth data fabric. This exact hybrid integration model is legally encumbered by our portfolio.

IV. Statutory and Ethical Mandates

Because Lockheed Martin operates as a publicly traded corporate entity bound by strict compliance and ethical frameworks, we must formally remind your corporate leadership and legal counsel of the following obligations:

1. SEC Disclosure Requirements for Public Companies

For Lockheed Martin Corporation, we remind you that if you find yourselves potentially infringing any of the Inventions covered in this intellectual property portfolio, you are legally obligated to assess whether it is necessary to notify your investors and file a material risk disclosure notice with the Securities and Exchange Commission (SEC). The failure to disclose a material intellectual property encumbrance that threatens your core aerospace platforms (such as the F-35) constitutes a severe breach of fiduciary duty.

2. Attorney Ethical Obligations (Model Rule 8.3)

A direct reminder is issued to the Chief Legal Officers, General Counsels, and all retained outside counsel receiving or reviewing this notice (including Kevin J. O'Connor): You are strictly bound by your ethical obligations, including ABA Model Rule of Professional Conduct 8.3. You maintain an affirmative obligation to report any unprivileged knowledge of wrongdoing that raises a substantial question as to a lawyer's honesty, trustworthiness, or fitness. If your internal audits reveal evidence of coordinated intellectual property theft or procurement fraud that

ISBN 9781971481296

may compromise the integrity of a court, you are ethically mandated to report such conduct to the appropriate professional authorities.

V. Immutable Audit Trail and Mandatory Administrative Action

This formal claim is delivered via Registered Email (RPost). This service provides an immutable, cryptographically verified audit trail, including proof of delivery, message content, and the exact official time of sending and opening.

As warranted Procuring Contracting Officers, if you receive cryptographically verified proof that a contractor is charging the government for freely available intellectual property, your failure to initiate an audit or halt payments leaves a permanent digital footprint of your inaction. This exposes you to severe administrative and potentially criminal liability for complicity in procurement fraud.

Pursuant to federal acquisition regulations, you are hereby mandated to freeze approvals related to the disputed intellectual property, halt the assumption of clear title for the F-35 TR-3 upgrades, and forward this communication immediately to the Intellectual Property Law Division of your respective branches.

V/R,

Reinaldo Aguiar Marcano

2302 Britton Ridge Drive, Katy TX 77494
https://xislist.org/ (ISBN 9781971481296)

ISBN 9781971481296

Gmail RJ Aguiar, JR. <rj.aguiar.m@gmail.com>

Registered: [CORRECTED] FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES CONCERNING PERPETUALLY LICENSED TECHNOLOGIES

1 message

RJ Aguiar JR via RPost <rmail@r1.rpost.net> Fri, Apr 17, 2026 at 8:40 AM
Reply-To: rj.aguiar.m+legal-notice@gmail.com
To: william.a.creech3.civ@army.mil, mia.a.steele2.civ@army.mil, tamara.n.jenkins.civ@mail.mil, undra.n.robinson.civ@mail.mil, Emely.E.Winnert@nga.mil, AFLCMCJAWorkFlowmail@us.af.mil, emil.michael@mail.mil
Cc: rj.aguiar.m+legal-notice@gmail.com

REGISTERED EMAIL™ | FILE SHARE

This is a Registered Email™ message from **RJ Aguiar JR** .

Large file(s) have been sent to you and are ready to be downloaded. The file(s) will be available for download for 14 days.

File Name(s)	
01_DFARS_227.7004_Plantir-and-Anduril-Industries.pdf	137.26KB
02__ISBN-9781971481296__Portfolio-of-Patent-Applications_and_Declaration-D132.pdf	75.12MB
03__DEFENSIVE-PUBLICATION-EMAIL-with-RECEIPT-EPO_gphilpott@epo.org_nsimon@epo.org_srowan@epo.org_rmenidjel@epo.org_ymeniere@epo.org_tvilela@epo.org.pdf	630.05KB
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[Corrections in red below]

Dear Mr. Creech, Ms. Steele, Ms. Jenkins, Mr. Robinson, Ms. Winnert, Mr. Elliott, and the AFLCMC Contracting Office,

As a way of introduction, my name is Reinaldo Aguiar, I am the Principal at a firm focusing on Aerospace and Sat-Comm technologies, and a former Managing Director at Goldman Sachs and Staff Engineer at Google.

Please find attached:

01. FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES CONCERNING PERPETUALLY LICENSED TECHNOLOGIES, attached as file: 01_DFARS_227.7004_Plantir-and-Anduril-Industries.pdf .

02. Portfolio of fifty-two (52) USPTO Patent Applications mentioned in the Notice (# 01 DFARS 227.7004 above), attached as file: **02__ISBN-9781971481296__Portfolio-of-Patent-Applications_and_Declaration-D132.pdf**.

03. Defensive Publication Disclosure made to the European Patent Office (EPO).

EXHIBIT I: Cryptographically verified **RPost Registered Receipt**™ (Tracking ID: **77D821347FDBA15F9F2D60EB2BB3F7803F631719**), providing permanent proof of delivery and the official time of opening of the DFARS administrative claim files by defense procurement leadership on April 17, 2026.

Gmail RJ Aguiar, JR. <rj.aguiar.m@gmail.com>

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Gmail RJ Aguiar, JR. <rj.aguiar.m@gmail.com>

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CATEGORY IV: INTELLECTUAL PROPERTY REPOSITORIES & ADVERSARIAL COERCION ADMISSIONS

EXHIBIT J: Primary cover configuration, official Library of Congress control metadata, and printed Table of Contents of Relator's published compendium: ***Be Water, Be Light: Portfolio of Patent Applications Submitted to the US Patent and Trademark Office During Year 2026*** **(ISBN 9781971481296)**.

Exhibit E: Cover page, copyright registration data, and Table of Contents of Respondent's published work: *Published Catalog of Active Patent Applications Submitted to the United States Patent and Trademark Office (USPTO) during the Year 2026* (**ISBN 9781971481296**).

Be Water, Be Light

Portfolio of Patent Applications Submitted to the US Patent and Trademark Office During Year 2026

Compiled by R.J. Aguiar

2026 Version 2.1998.9

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EXHIBIT K: Respondent’s Unsworn Emergency Declaration of Translation and Transcription Certification pursuant to Tex. Civ. Prac. & Rem. Code § 132.001, embedding the text message exchange with Petitioner Gloria Espina wherein she asserts a personal "gift" ownership interest over a corporate-funded computer tool.

NO. 25-DCV-328122

IN THE MATTER OF THE MARRIAGE OF
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO
IN THE DISTRICT COURT OF FORT BEND COUNTY, TEXAS
387TH JUDICIAL DISTRICT
AND IN THE INTEREST OF A CHILD

RESPONDENT'S UNSWORN EMERGENCY DECLARATION OF TRANSLATION AND TRANSCRIPTION CERTIFICATION PURSUANT TO TEX. CIV. PRAC. & REM. CODE § 132.001

My name is Reinaldo J. Aguiar Marcano. My date of birth is February 17th, 1979, and my address is 26714 Valleyside Drive, Katy, Texas 77494, United States of America. I am the Respondent in the above-styled cause. I am over eighteen years of age, of sound mind, have personal knowledge of the facts stated herein, and am fully competent to make this unsworn declaration.

1. I am native-fluent and fully proficient in both the English and Spanish languages, possessing the requisite linguistic capability to accurately, completely, and faithfully transcribe and translate legal, evidentiary, and electronic documents between said languages.
2. I am the creator and custodian of the attached transcript and translation of the electronic text message exchanges between myself and the Petitioner, Gloria Espina, which took place in May 2026, attached to the main motion as **Appendix Exhibit C**.
3. I hereby certify under penalty of perjury under the laws of the State of Texas and the United States of America that the Spanish-language text contained within the transcription is a true, literal, and exact typographic replication of the original electronic communications, and that the English-language text is a true, faithful, and accurate translation of said transcription to the best of my skills and linguistic ability.
4. **Statement of Emergency Constraints, Exigent Circumstances, and Unavailability of a Notary Public:** I am executing this translation, transcription, and certification personally as an **Unsworn Declaration under Texas Civil Practice and Remedies Code § 132.001** out of absolute procedural necessity and a complete lack of alternative legal or notary access, arising from the following immediate constraints intentionally imposed upon me:
    - **Timing Constraints:** This Court unilaterally scheduled an ex parte event on the docket for Wednesday, May 27, 2026, but did not update, expose, or make the entry visible until Friday afternoon, May 22, 2026, leaving me with less than two clear business days to prepare, translate, file, and serve my mandatory statutory objections.

- **Physical Confinement / De Facto House Arrest:** This Court signed a void Order for Capias on May 15, 2026 (Index #222), during an active jurisdictional stay pending before the Supreme Court of Texas (Cause No. 26-0511). This unlawful warrant has placed me under a state of *de facto* house arrest, legally and physically preventing me from traveling to a commercial notary public, bank, or certified translation agency without facing the immediate threat of arrest, confinement, and vehicle/proprietary technology impoundment.

5. Due to these bad-faith administrative and physical constraints, I have no recourse but to submit this self-certified translation utilizing an unsworn declaration to ensure my timely, statutory written objections are preserved before the May 27, 2026 deadline.
6. I formally pledge to this Court and the Appellate Clerks that I will procure a secondary, independent certification from an accredited, third-party court translator and a traditionally notarized affidavit immediately upon the lifting of the mandatory, automatic stay currently pending before the Supreme Court of Texas in Cause No. 26-0511, and upon the quashing or staying of the void Capias that currently restrains my physical liberty.

MANDATORY STATUTORY VERIFICATION

"I, REINALDO J. AGUIAR MARCANO, declare under penalty of perjury that the foregoing is true and correct."

Executed in Fort Bend County, State of Texas, on this 25 day of May, 2026.



Reinaldo J. Aguiar Marcano

Declarant / Respondent Pro Se
26714 Valleyside Drive
Katy, Texas 77494
(646) 229-5724
rj.aguiar.m@gmail.com

English Translation

[11:32 AM] Gloria Andrea Espina: Ok. No visit today either? I was thinking of going after graduation

[11:44 AM] Reinaldo J. Aguiar Marcano: With the looming threat of arrest: no. I am not going to expose the child to the trauma of seeing his dad being arrested. I find it unbelievable that you don't see how traumatic that could be for a child his age

[10:15 AM] Reinaldo J. Aguiar Marcano: Hello Good morning, sorry to bother you. I am trying to log into the computer that I gave you when I hired you to hire salespeople, it's a MacBook but it's asking me for a security code from your Apple account

[10:16 AM] Reinaldo J. Aguiar Marcano: I sent it to your cell phone at this number, can you pass it to me, please?

[10:40 AM] Gloria Andrea Espina: Hello. I haven't received anything and of course I cannot give you the security code to my Apple account. Besides, that computer is mine

[10:43 AM] Reinaldo J. Aguiar Marcano: It is the company's computer

[10:43 AM] Reinaldo J. Aguiar Marcano: And it is not the code to your account, it is a code to unlock the computer

[10:43 AM] Gloria Andrea Espina: No. You gifted it to me

[10:44 AM] Reinaldo J. Aguiar Marcano: Now you're going to start fabricating things to sue me, now over the computer

[10:44 AM] Reinaldo J. Aguiar Marcano: Don't worry, don't give me the password

Spanish Transcription

[11:32 AM] Gloria Andrea Espina: Ok. No visita hoy tampoco? yo pensaba ir despues de la graduacion

[11:44 AM] Reinaldo J. Aguiar Marcano: Con la amenaza latente de arresto: no. No voy a

exponer Al nino Al trauma de ver a su papa siendo arrested. Me parece increible que no veas lo traumatico que eso podria ser para un nino de su edad

[10:15 AM] Reinaldo J. Aguiar Marcano: Hola Buenos dias, disculpa te moleste. Estoy tratando de entrar a la computadora que te di cuando te contrate para contratat vendedores, es una MacBook pero me pide un codigo se seguridad de tu cuenta apple

[10:16 AM] Reinaldo J. Aguiar Marcano: Te lo envie a tu celular a Este numero, me lo puedes pasar , por fa ?

[10:40 AM] Gloria Andrea Espina: Hola. No me ha llegado nada y por supuesto no te puedo dar el codigo de seguridad de mi cuenta apple. Además esa computadora es mía

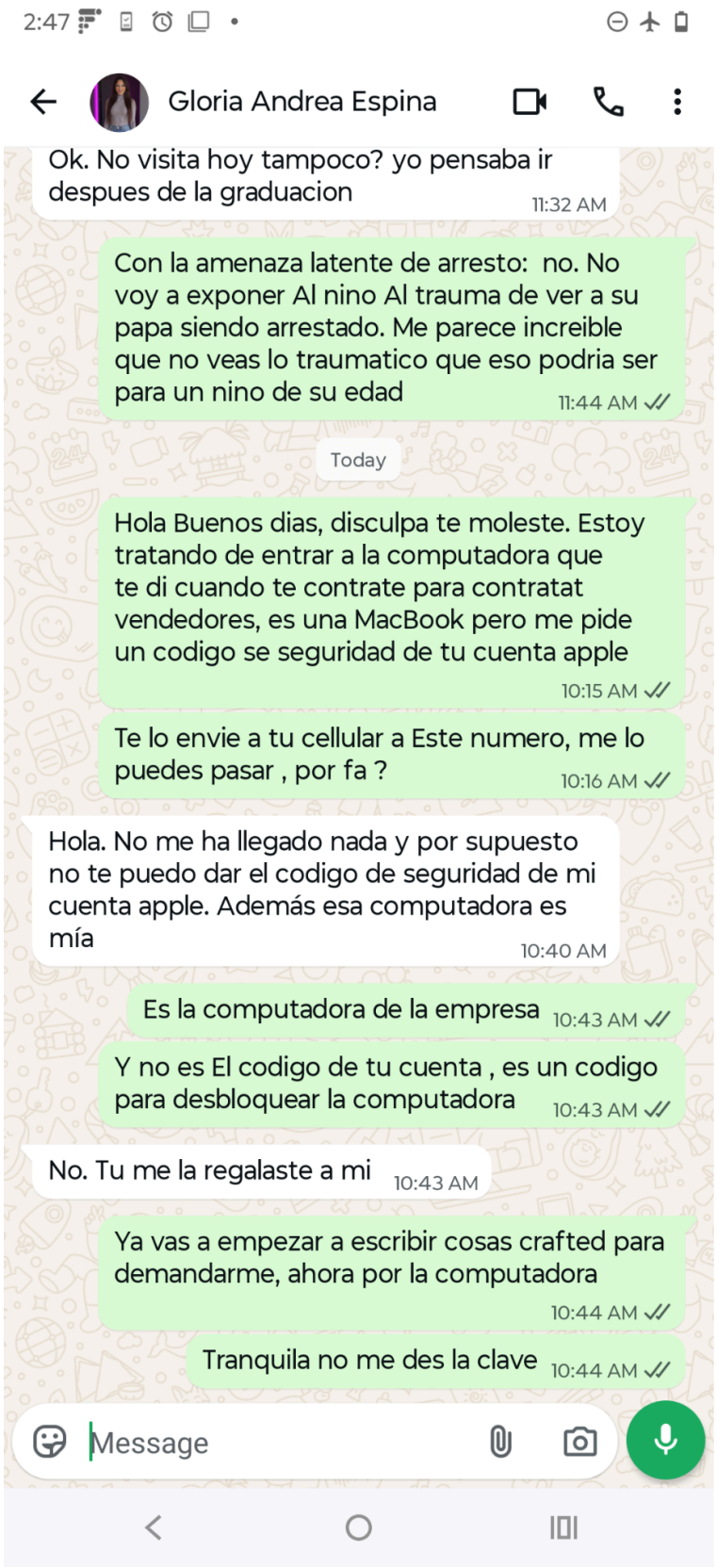
[10:43 AM] Reinaldo J. Aguiar Marcano: Es la computadora de la empresa

[10:43 AM] Reinaldo J. Aguiar Marcano: Y no es El codigo de tu cuenta , es un codigo para desbloquear la computadora

[10:43 AM] Gloria Andrea Espina: No. Tu me la regalaste a mi

[10:44 AM] Reinaldo J. Aguiar Marcano: Ya vas a empezar a escribir cosas crafted para demandarme, ahora por la computadora

[10:44 AM] Reinaldo J. Aguiar Marcano: Tranquila no me des la clave


2:47
Gloria Andrea Espina
Ok. No visita hoy tampoco? yo pensaba ir despues de la graduacion
11:32 AM
Con la amenaza latente de arresto: no. No voy a exponer Al nino Al trauma de ver a su papa siendo arrestado. Me parece increible que no veas lo traumatico que eso podria ser para un nino de su edad
11:44 AM
Today
Hola Buenos dias, disculpa te moleste. Estoy tratando de entrar a la computadora que te di cuando te contrate para contratat vendedores, es una MacBook pero me pide un codigo se seguridad de tu cuenta apple
10:15 AM
Te lo envie a tu cellular a Este numero, me lo puedes pasar , por fa ?
10:16 AM
Hola. No me ha llegado nada y por supuesto no te puedo dar el codigo de seguridad de mi cuenta apple. Además esa computadora es mía
10:40 AM
Es la computadora de la empresa
10:43 AM
Y no es El codigo de tu cuenta , es un codigo para desbloquear la computadora
10:43 AM
No. Tu me la regalaste a mi
10:43 AM
Ya vas a empezar a escribir cosas crafted para demandarme, ahora por la computadora
10:44 AM
Tranquila no me des la clave
10:44 AM
Message

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Filing Description: RELATOR'S RESPONSE TO MOTION FOR RULE 52.11 SANCTIONS, EMERGENCY MOTION FOR IMMEDIATE TEMPORARY STAY UNDER TRAP 52.10, AND CONCURRENT CROSS-PETITION FOR WRIT OF MANDAMUS AND EX PARTE HABEAS CORPUS
Status as of 5/27/2026 8:34 AM CST

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